

1 ENGROSSED SENATE
2 BILL NO. 1772

By: Pederson of the Senate

3 and

4 Johns of the House

5
6 An Act relating to motor vehicles; amending 47 O.S.
7 2021, Sections 12-201, 12-202, 12-203.1, 12-203.2,
8 12-203.4, 12-213, 12-216, 12-217, 12-702, 12-703, and
9 12-706, which relate to lamps and lighting devices;
10 updating statutory language; requiring use of lamps
11 and illuminating devices at certain times; requiring
12 use of lamps and illuminating devices under certain
13 conditions; updating statutory language; updating
14 statutory references; and providing an effective
15 date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 47 O.S. 2021, Section 12-201, is
18 amended to read as follows:

19 Section 12-201. A. The United States Department of
20 Transportation specifications and standards for headlamps, auxiliary
21 driving lamps, tail lamps, signal lamps, reflectors, and other
22 lighting equipment and signal devices, pursuant to 49 C.F.R.,
23 Section 571.108, are hereby adopted by ~~the State of Oklahoma~~ this
24 state.

B. Except as otherwise provided in ~~this chapter~~ Section 12-101
et seq. of this title and subject to exceptions for parked vehicles,

1 every vehicle upon a highway within this state shall properly
2 display all lamps and illuminating devices as required by law:

3 1. At any time from ~~one-half (1/2) hour after~~ sunset to ~~one-~~
4 ~~half (1/2) hour before~~ sunrise, also referred to in ~~this chapter~~
5 Section 12-101 et seq. of this title as nighttime; and

6 2. At any other time when a motor vehicle's electric windshield
7 wiper mechanism is in use as a result of inclement weather or, due
8 to insufficient light or unfavorable atmospheric conditions, persons
9 and vehicles on the highway are not clearly discernible at a
10 distance of one thousand (1,000) feet or less.

11 C. All lamps required by ~~this chapter~~ Section 12-101 et seq. of
12 this title shall display a steady light except as otherwise
13 prescribed by ~~this chapter~~ Section 12-101 et seq. of this title.
14 Any required individual lamp may be combined or incorporated with
15 any other required individual lamp if the combined or incorporated
16 lamps meet all of the individual lighting requirements ~~of this~~
17 ~~chapter~~ for each individual lamp contained ~~therein~~ within such
18 combined or incorporated lamps.

19 D. No lamp, other than a headlamp, displayed on any vehicle
20 shall project a glaring light; provided, every headlamp shall comply
21 with Section ~~12-222~~ 12-203.2 of this title.

22 SECTION 2. AMENDATORY 47 O.S. 2021, Section 12-202, is
23 amended to read as follows:

1 Section 12-202. A. Any requirement ~~of this chapter~~ provided in
2 Section 12-101 et seq. of this title as to the distance from which
3 certain lamps and devices shall render objects visible, or within
4 which such lamps or devices shall be visible, shall apply during the
5 times ~~stated in~~ provided by subsection B of Section 12-201 of this
6 title, in respect to a vehicle without load when upon a straight,
7 level, unlighted highway, under normal atmospheric conditions unless
8 a different time or condition is expressly stated.

9 B. Any requirement ~~of this chapter~~ provided in Section 12-101
10 et seq. of this title as to the mounted height of lamps or devices
11 shall mean from the center of such lamp or device to the level
12 ground upon which the vehicle stands when such vehicle is without a
13 load.

14 SECTION 3. AMENDATORY 47 O.S. 2021, Section 12-203.1, is
15 amended to read as follows:

16 Section 12-203.1. A. At all times ~~specified in~~ provided in
17 subsection B of Section 12-201 of this title, at least two lighted
18 headlamps shall be displayed, one on each side at the front of every
19 motor vehicle, except when such vehicle is parked subject to the
20 regulations governing lights on parked vehicles, as provided in
21 Section 12-214 of this title.

22 B. Whenever a motor vehicle equipped with headlamps as herein
23 required is also equipped with any auxiliary driving lamps or a spot
24 lamp or any other lamp on the front ~~thereof~~ of such motor vehicle

1 projecting a beam of intensity greater than three hundred (300)
2 candlepower, not more than a total of four of any such lamps on the
3 front of a vehicle shall be lighted at any one time when upon a
4 highway.

5 C. The driver of any vehicle shall comply with the provisions
6 of Section 12-217 of this title regarding the use of alternate
7 headlamp equipment.

8 SECTION 4. AMENDATORY 47 O.S. 2021, Section 12-203.2, is
9 amended to read as follows:

10 Section 12-203.2. Whenever a motor vehicle is being operated on
11 a roadway, or shoulder adjacent ~~thereto~~ to such, during the times
12 ~~specified~~ provided in subsection B of Section 12-201 of this title,
13 the driver shall use a distribution of light, or composite beam,
14 directed high enough and of sufficient intensity to reveal persons
15 and vehicles at a safe distance in advance of the vehicle, subject
16 to the following requirements and limitations:

17 1. Whenever a driver of a vehicle approaches an oncoming
18 vehicle within one thousand (1,000) feet, such driver shall use a
19 distribution of light, or composite beam, so aimed that the glaring
20 rays are not projected into the eyes of the oncoming driver. The
21 lowermost distribution of light, or composite beam, specified in
22 paragraph 2 of subsection C of Section 12-203 of this title shall be
23 deemed to avoid glare at all times, regardless of road contour and
24 loading.

1 2. Whenever the driver of a vehicle follows another vehicle
2 within six hundred (600) feet to the rear, such driver shall use a
3 distribution of light permissible under ~~this chapter~~ the provisions
4 of Section 12-101 et seq. of this title, other than the uppermost
5 distribution of light specified in paragraph 1 of subsection C of
6 Section 12-203 of this title.

7 SECTION 5. AMENDATORY 47 O.S. 2021, Section 12-203.4, is
8 amended to read as follows:

9 Section 12-203.4. Any motor vehicle operated at a speed of
10 twenty (20) miles per hour or less may be operated under the
11 conditions ~~specified~~ provided in subsection B of Section 12-201 of
12 this title when equipped with two lighted lamps upon the front
13 ~~thereof~~ of such motor vehicle capable of revealing persons and
14 objects one hundred (100) feet ahead in lieu of lamps required in
15 Section 12-203 or 12-203.3 of this title.

16 SECTION 6. AMENDATORY 47 O.S. 2021, Section 12-213, is
17 amended to read as follows:

18 Section 12-213. A. Whenever the load upon any vehicle extends
19 to the rear four (4) feet or more beyond the bed or body of such
20 vehicle, there shall be displayed at the extreme rear end of the
21 load, at the ~~time specified~~ times provided in subsection B of
22 Section 12-201 of this title:

23 1. Two red lights and two red reflectors positioned to indicate
24 maximum width; and

1 2. One red light facing to each side positioned to indicate
2 maximum overhang.

3 The required lights and reflectors may be mounted in combination
4 at each side of the vehicle and shall be visible from a distance of
5 one thousand (1,000) feet.

6 B. At any other time on any such vehicle, there shall be
7 displayed at the extreme rear end of such load red flags not less
8 than twelve (12) inches square marking the extremities of such load
9 at each point where a lamp would otherwise be required by this
10 section.

11 SECTION 7. AMENDATORY 47 O.S. 2021, Section 12-216, is
12 amended to read as follows:

13 Section 12-216. A. Animal-drawn vehicles and vehicles referred
14 to in subsection C of Section 12-101 of this title, not specifically
15 required by the provisions of ~~this chapter~~ Section 12-101 et seq. of
16 this title to be equipped with lamps or other lighting devices,
17 shall, at all times ~~specified~~ provided in subsection B of Section
18 12-201 of this title, be equipped with at least one lamp emitting a
19 white light visible from a distance ~~of~~ not less than one thousand
20 (1,000) feet to the front of ~~said~~ such vehicle, and shall also be
21 equipped with two lamps displaying red light visible from a distance
22 ~~of~~ not less than one thousand (1,000) feet to the rear of ~~said~~ such
23 vehicle or, as an alternative, one lamp displaying a red light
24 visible from a distance ~~of~~ not less than one thousand (1,000) feet

1 to the rear and two red reflectors visible for distances of six
2 hundred (600) feet to one hundred (100) feet to the rear when
3 illuminated by the lower beams of headlamps.

4 B. The failure on the part of an owner or driver of any vehicle
5 specified in this section to display any lamp, lighting device, or
6 reflector required by this section shall not relieve the operator of
7 a motor vehicle from negligence in the event of a collision.

8 SECTION 8. AMENDATORY 47 O.S. 2021, Section 12-217, is
9 amended to read as follows:

10 Section 12-217. A. As used in ~~this article~~ Section 12-101 et
11 seq. of this title:

12 1. "Auxiliary driving lamp" means a lamp mounted to provide
13 illumination to the front of a motor vehicle;

14 2. "Daytime running lamp" means a lamp mounted to provide
15 illumination to the front of a motor vehicle that will assist to
16 identify its presence to other vehicles and pedestrians at times
17 other than those ~~specified~~ provided in subsection B of Section 12-
18 201 of this title;

19 3. "Front fog lamp" means a lamp mounted to provide
20 illumination to the front of a motor vehicle during conditions of
21 rain, snow, fog, dust, or other atmospheric disturbances;

22 4. "Rear fog lamp" means a lamp mounted to provide illumination
23 to the rear of a motor vehicle during conditions of rain, snow, fog,
24 dust, or other atmospheric disturbances;

1 5. "Off-road lamp" means any lamp designed and manufactured
2 solely for off-road use; and

3 6. "Spot lamp" means a movable lamp which emits a brilliant
4 light with a focused beam for examining objects, street address
5 numbers, and other things alongside the road.

6 B. Any motor vehicle may be equipped with not to exceed two
7 spot lamps which shall not be used in substitution of headlamps.

8 C. The operator of any motor vehicle:

9 1. Which has in use a spot lamp shall, upon the approach of
10 another vehicle from any direction within one thousand (1,000) feet,
11 immediately turn ~~said~~ such spot lamp off;

12 2. Shall not use or turn on a spot lamp when approaching or
13 following another motor vehicle within one thousand (1,000) feet;
14 and

15 3. Shall not use or turn on a spot lamp to cause a vehicle to
16 yield right-of-way or stop.

17 The provisions of this subsection shall not apply to operators
18 of authorized emergency vehicles.

19 D. 1. A motor vehicle may be equipped with not to exceed two
20 front fog lamps or two rear fog lamps which shall only be used when
21 visibility, as described in paragraphs 3 and 4 of subsection A of
22 this section, is limited to one-half (1/2) mile or less.

23 2. Front fog lamps shall be mounted on the same level on
24 opposite sides of the front of the vehicle at or below the level of

1 the headlamps. Front fog lamps may be used with lower beam
2 headlamps or switch controlled in conjunction with the headlamps and
3 may be used, at the discretion of the driver, with either low or
4 high beam headlamps. Front fog lamps shall not be used in
5 substitution of headlamps, when headlamps are required.

6 E. A motor vehicle may be equipped with not to exceed two
7 auxiliary driving lamps mounted at a height of more than forty-two
8 (42) inches from the ground. The auxiliary driving lamps may be
9 used with lower beam headlamps or switch controlled in conjunction
10 with the headlamps and may be used, at the discretion of the driver,
11 with either low or high beam headlamps.

12 F. Every fog lamp or auxiliary driving lamp used upon a motor
13 vehicle shall be so adjusted and aimed that no part of the high
14 intensity portion of the beam shall, at a distance of twenty-five
15 (25) feet, rise above the horizontal plane passing through the
16 center of the lamp.

17 G. ~~Notwithstanding any other provision of law, a~~ A vehicle may
18 be equipped with off-road lamps for use as headlamps while the
19 vehicle is operated or driven off of a highway. The lamps shall be:

20 1. Mounted at a height ~~of~~ not less than forty-two (42) inches
21 from the ground;

22 2. Wired independently of all other lighting; and

23 3. Turned off whenever the vehicle is operated or driven upon a
24 highway.

1 H. 1. A motor vehicle may be equipped with not to exceed two
2 daytime running lamps which conform to 49 C.F.R., Section 571.108,
3 ~~S5.5.11~~ S6.1.1.4.

4 2. Daytime running lamps shall not be used in substitution of
5 headlamps.

6 3. Daytime running lamps shall be mounted on the front of a
7 motor vehicle and shall be wired to be:

8 a. automatically activated when the vehicle is started,
9 and

10 b. automatically deactivated when the headlamp control is
11 in any "on" position.

12 SECTION 9. AMENDATORY 47 O.S. 2021, Section 12-702, is
13 amended to read as follows:

14 Section 12-702. Every bicycle in use at the times ~~described~~
15 provided in subsection B of Section 12-201 of this title shall be
16 equipped with a lamp on the front emitting a white light visible
17 from a distance of at least one thousand (1,000) feet to the front.
18 This section shall not apply to a bicycle operated on a street or
19 highway with a speed limit of twenty-five (25) miles per hour or
20 less.

21 SECTION 10. AMENDATORY 47 O.S. 2021, Section 12-703, is
22 amended to read as follows:

23 Section 12-703. Every bicycle in use at the times ~~described~~
24 provided in subsection B of Section 12-201 of this title shall be

1 equipped with a lamp on the rear emitting a red light visible from a
2 distance of at least one thousand (1,000) feet to the rear. This
3 section shall not apply to a bicycle operated on a street or highway
4 with a speed limit of twenty-five (25) miles per hour or less.

5 SECTION 11. AMENDATORY 47 O.S. 2021, Section 12-706, is
6 amended to read as follows:

7 Section 12-706. Every bicycle ~~when~~ in use at the times
8 ~~described~~ provided in subsection B of Section 12-201 of this title
9 shall be equipped with reflective material of sufficient size and
10 reflectivity to be visible from both sides for six hundred (600)
11 feet when directly in front of lawful lower beams of headlamps on a
12 motor vehicle.

13 SECTION 12. This act shall become effective November 1, 2026.

14 Passed the Senate the 25th day of March, 2026.

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Presiding Officer of the Senate

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18 Passed the House of Representatives the ____ day of _____,
19 2026.

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Presiding Officer of the House
of Representatives

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